IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.135

C.P.(CAA)/57(AHM)2022 in
C.A.(CAA)/33(AHM)2022

Order under Sections 230-232 of the Companies Act

IN THE MATTER OF:

Dytint Specialities Private Limited **.....Applicants**
Alps Chemicals Private Limited

Order delivered on …24.01.2023

Coram:

Dr. Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for the pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

CP (CAA) No. 57/230-232/2022 in
CA (CAA) No. 33/230-232/2022

[Application under Sections 230-232 read with Section 61 and 66 of the Companies Act, 2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016]

Scheme of Arrangement in the nature of Amalgamation

of

Dytint Specialities Private Limited
(Transferor Company)

with

Alps Chemicals Private Limited
(Transferee Company)

and

Their respective Shareholders and Creditors

In the matter of :

Dytint Specialities Private Limited
(CIN: 65910GJ1994PTC023914)
A Company incorporated under
the provisions of Companies Act,
1956 having its Registered Office
at 5th Floor, Laxmi Chambers,
Navjivan Road, Opp. Old Gujarat
High Court, Ahmedabad - 380009

... Applicant
Transferor Company

With

Alps Chemicals private Limited
(CIN: 24199GJ1985PTC008160)
A Company incorporated under
the provisions of Companies Act,
1956 having its Registered Office
at 612 GIDC, Phase IV, Vatva,
Ahmedabad - 382445 … Petitioner
Transferee Company

Order Pronounced on 24.01.2023

Coram: Dr. Madan Bhalchandra Gosavi-Member (Judicial)
Mr.Kaushalendra Kumar Singh-Member(Technical)

Appearance:

For the Petitioner Companies	:	Mr. Sanjay Majmudar, Dr. Hiten Parikh and Mr. Vivek Zalavadiya, PCA.
For the Regional Director	:	Mr. Liladhar Sharma, Asst. Director.
For the Income Tax Department	:	Ms. Pankti Shah, Advocate, on behalf of Ms. Maithili D. Mehta, Advocate.

ORDER

1. This joint petition has been filed under Sections 230 and 232 read with section 61 and 66 and other applicable provisions of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, by the petitioner companies seeking sanction of this Tribunal to a Scheme of Arrangement in the nature of Amalgamation of Dytint Specialities Private Limited, (Transferor Company) with Alps

Chemicals Private Limited (Transferee Company) with effect from the Appointed Date April 1, 2021, being the Appointed Date as mentioned in the Scheme. This second motion petition is filed on 18.08.2022.

2. An Affidavit in support of the above joint petition has been sworn by Mr. Haresh Bhuta on behalf of the Petitioner Companies who is the executive director and the authorized representative of the Petitioner Companies, and the same is annexed with the application. The above-named authorized representative for the Petitioner Companies has been authorized vide Board Resolutions dated 24.03.2022 of the Petitioner Companies.

3. The Transferee Company is the holding company of the Transferor Company holding 58.90% of the share capital. The commercial activities of both companies are similar in nature. Further, upon the scheme being effective and upon the shares of the Transferee Company being issued to the shareholders of the Transferor Company, the shares held in the Transferor Company shall stand cancelled. The petitioner companies have filed their respective audited financial statements as on 31st March 2021, which are annexed with the petition.

4. The petitioner companies had filed a joint Company Application before this Tribunal being CA (CAA) No. 33 of 2022 and sought dispensation of meeting of the Equity Shareholders of the Transferor Company and Transferee Company in view of their consent affidavit. Further sought directions for convening the meetings of the Secured Creditors and Unsecured Creditors of the Transferor Company and Transferee Company.

5. This Tribunal vide order dated 21.06.2022 dispensed with the meeting of the equity shareholders of the Transferor Company and Transferee Company. This Tribunal had further directed for convening separate meetings of the Secured creditors and Unsecured Creditors of the Transferor Company and Transferee Company for the purpose of considering and, if thought fit, approving with or without modification(s), the proposed Scheme of Arrangement in the nature of Amalgamation at the respective meetings.

6. By the order dated 21.06.2022, passed in CA (CAA) No. 33 of 2022, this Tribunal had directed for issuance of notices of meetings and publications in newspapers, English daily 'Business Standard' Ahmedabad edition and Gujarati daily 'Jai Hind' Ahmedabad editions. Further, this Tribunal had also directed the Applicant Companies to serve Notice of the Scheme in compliance with Section 230(5) of the Companies Act, 2013 in the Form 'CAA-3' along with disclosures mentioned under Rule 6 to

(i) The Central Government through the Regional Director, North Western Region

(ii) The Registrar of Companies, Gujarat.

(iii) The Income Tax Authorities

(v) The Office of the Official Liquidator for the Applicant Transferor Company

stating that representations, if any, to be made within a period of 30 days from the date of receipt of such notice, and in case no representation is received by this Tribunal within the stipulated

period of 30 days, it should be presumed that the authorities have no representation to make.

In compliance with the order dated 21.06.2022, the Petitioner Companies have served notices to the Central Government through the Regional Director, North-Western Region, the Registrar of Companies, Gujarat, the concerned Income Tax Authorities, the Official Liquidator (in respect of the Transferor Companies), on 28.06.2022. The Petitioner Companies have filed the affidavit of service dated 25.07.2022.

7. In compliance with the directions for convening the meetings, the same were duly complied with by the Petitioner Companies and compliance Affidavits dated 06.08.2022 and 09.08.2022 were duly filed by the Petitioner Companies. The meetings were duly convened on 30st July, 2022. The meetings of Secured Creditors of the Transferor company and Transferee Company were adjourned to 6th August, 2022 due to lack of Quorum. The Chairman appointed for the said meetings has filed his reports for the result of said meetings along with affidavit dated 6th August, 2022 and 9th August, 2022 respectively. The said reports confirm the unanimous approval to the proposed scheme by the unsecured creditors of the Transferor Company and unsecured creditors and Secured Creditors of the Transferee Company casting valid votes through physical voting by ballots at the time of the meetings.

The sole Secured Creditor of the Transferor Company has conveyed its “No Due Certificate” before the date of the extended Meeting of the Secured Creditors. Thereafter the matter was kept for the clarification on 11th January, 2023 and the Ld. PCA has submitted the certificate from the Statutory Auditor namely K.S.

Majmudar & Associates, Chartered Accountants confirming that the company has repaid the entire money before the 4th August, 2022 and the present outstanding to the sole secured creditor namely Citi Bank, N.A. is Rs. Nil. The said certificate is taken on record.

8. The Petitioner Companies have jointly filed the present Company Petition being CP (CAA) No. 57 of 2022 before this Tribunal seeking sanction of the proposed Scheme of Amalgamation.

9. This Tribunal by order dated 05.09.2022, admitted the petition and directed for publication of hearing in Petition in the newspapers, (Gujarati Daily) 'Jai Hind' and in English language (English Daily) 'Business Standard' of Ahmedabad editions not less than ten days before the date fixed for hearing, calling for objections, if any, on or before the date of hearing. This Tribunal also directed to issue a notice of hearing of the petition to (i) Central Government through the Regional Director, North-Western Region, (ii) the Registrar of Companies, Gujarat (iii) concerned Income Tax Authorities; and (iv) the Official Liquidator. The said directions were complied with and compliance affidavits have been filed for the same on 19th October, 2022.

10. Pursuant to the order dated 05.09.2022 passed by this Tribunal, the Petitioner Companies have published the notice of hearing of the company petition in English daily, "Business Standard", Ahmedabad edition and Gujarati translation thereof in "Jai Hind", Ahmedabad edition on 11.10.2022. The affidavit of service, on behalf of the Petitioner Companies, dated 19.10.2022,

has been filed confirming the publication of the notice in the newspapers as directed and also the notice of hearing of the petition being served upon the concerned statutory authorities.

11. The Regional Director, North Western Region, MCA has filed a common report on 24th August, 2022, along with the report from the Registrar of Companies. Their observation is as follows:

(i) The Auditors of the Transferor and Transferee Company have made certain remarks in their Audit reports.

12. The Official Liquidator, attached with the Hon'ble High Court of Gujarat has filed observations, vide report dated 29th August, 2022, seeking directions as follows:

i) 1st Motion application was filed on 09.04.2022 which is 9 days after the end of the financial year 2021-22. The justification for this is required to be taken in accordance with the circular dated 21.08.2019 of the MCA.

ii) The Transferor Company to preserve its books of accounts, papers and records and shall not dispose them without prior permission of the Central Government as per the provisions of the Section 239 of the Companies Act, 2013.

iii) The transferor company to ensure statutory compliance of all applicable laws and also on sanctioning of the

Scheme, the Transferor Company shall not be absolved from any of its statutory liability, in any manner.

v) The petitioner companies to lodge a certified copy of order along with the Scheme, with the concerned superintendent of stamp duty for determination of stamp duty payable, if any.

13. The Ld. Counsel for the Income Tax Department submitted representation dated 18th October, 2022 for the Transferor Company and 7th September, 2022 for the Transferee Company. It is submitted that no demand is outstanding against the Transferor Company whereas in case of the Transferee Company, there are outstanding due for Assessment Year 2020-21. However, at the time of hearing of the petition, the department has no objection regarding the scheme, as the petitioners have already paid the entire outstanding due to the department.

14. The Petitioner Companies have filed a common additional affidavit dated 21st October, 2022 in response to the said representations of the Regional Director, Registrar of Companies, the Official Liquidator and 4th November, 2022 for the Income Tax Dept. The submissions made for aforesaid observations are as follows:

i) For remarks of the Auditors in their Audit Reports, the Petitioner Companies have submitted details / clarifications with regards to the Regional Director which is reproduced in the RD Report.

ii) For delay in filling first motion application, it is submitted that the delay was due to delay in finalization of Accounts due to extension of various statutory due dates due to impact of COVID-19 pandemic in the country. Further, the Scheme of Arrangement in the nature of Amalgamation between Holding and its Subsidiary Company for the purpose of smooth functioning of the group and is not against the public interest.

iii) For differential fees, on consolidation of Authorised Capital, the Transferee Company gave undertaking for compliance of section 232(3)(i) of the Companies Act, 2013.

iv) The Transferee Company gave undertaking to preserve the books of accounts, papers and records of the transferor companies and not to dispose of the same without prior permission of the central govt. as per the provisions of section 239 of the Companies Act, 2013.

v) The Transferee Company gave undertaking for statutory compliance of all applicable laws and also confirmed that on sanctioning of the scheme, the transferor company shall not be absolved from any of its statutory liability, in any manner.

vi) The Transferee Company has submitted that the entire outstanding amount mentioned in the report has been paid in full to the Income Tax Department.

vii) The Transferee Company has undertaken to pay such cost and expenses to the office of the Official Liquidator for the Transferor Company as well as to the Regional Director, any such amount as may be considered appropriate by this Tribunal.

viii) The petitioner companies shall lodge a certified copy of order along with the Scheme, with the concerned superintendent of stamp duty for determination of stamp duty payable, if any.

15. Heard Ld. Counsel for the Petitioner Companies, also gone through the records.

16. Considering the above affidavits in reply filed by the Petitioner Companies, the observations made by the Regional Director in his representation dated 24.08.2022, the representation of the Official Liquidator dated 29.08.2022 and the report of the Income Tax Department stands satisfied.

17. On the basis of above the facts and submissions made by the learned counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the petitioner companies. We are of the considered view that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. In the result,

Company Petition No. CP (CAA) No. 57 of 2022 is allowed. The Scheme envisages amalgamation of Dytint Specialities Private Limited with Alps Chemicals Private Limited. It is declared that the said sanctioned scheme shall be binding on the petitioner companies and their shareholders, creditors and all concerned under the scheme.

18. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

19. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

20. This Tribunal orders as under:-

(i) The Scheme of Amalgamation as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

(ii) It is declared that the Transferor Company shall be dissolved without winding up.

(iii) All the properties mentioned in the schedule as **"Annexure B**", right and powers of the Transferor Company specified in the schedule hereto and all the other property, rights and powers of the Transferor Company be transferred without any further act or deed to the Transferee Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the Transferee Company for all the estate and interest of the Transferor Company, therein but subject nevertheless to all charges now affecting the same, if any.

(iv) As proposed in the Scheme, based on the report of the Registered Valuer, viz., Mr. Avinash Kothari dated 23.03.2022, upon coming into effect of this Scheme, the 5,89,030 (five lakhs eighty nine thousands and thirty only) Equity Shares held by the Transferee Company in the Transferor Company shall stand automatically cancelled under section 66 of the companies Act, 2013 with effect from the Effective Date without any further application, act or deed and no new shares in form of consideration shall be issued against the same.

The Transferee Company shall without any further application, act, instrument or deed, issue and allot to each other shareholders (Except the Transferee Company) of the Transferor Company whose name is recorded in the register of members of the Transferor Company on the Record Date, in the following ratio

("Share Entitlement Ratio"):

"1 (One) fully paid up Equity Shares of Rs. 10/- (Rupees Two only) each of the Transferee Company for every 03 (Three) fully paid Equity Shares of Rs.10/- (Rupees One Hundred only) each held by such shareholder in the Transferor Company."

(vi) All proceedings, if any, now pending by or against the Transferor Company be continued by or against the Transferee Company.

(vii) All workers / employees of all the Transferor Company shall be deemed to become the workers /employees of the Transferee Company with effect from the Appointed Date, and shall stand absorbed in the Transferee Company in accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than those on which they are engaged by the Transferor Company, as on the Effective Date.

(viii) The Petitioner companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the entire Undertaking of the Transferor Company shall stand transferred to the Transferee Company and the Registrar of Companies shall place all documents relating to the Transferor Company to the file kept by him in relation to the Transferee Company and the files relating to the said two companies shall be

treated accordingly.

(ix) All concerned Authorities to act on copy of this order along with the Scheme authenticated by the Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

(x) The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the Transferor Company attached as **Annexure-B** with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

(xi) The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

(xii) The legal fees / expenses of the office of the Regional Director are quantified at Rs.10,000/- each in respect of the petitioner companies. The said fees to the Regional Director shall be paid by the Transferee Company.

(xiii) The legal fees and expenses of the office of the Official

Liquidator are quantified at Rs.10,000/- in respect of the Transferor Company. The said fees to the Official Liquidator shall be paid by the Transferee Company.

(xiv) Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

(xv) Upon Scheme being effective, the Authorised Capital of the Transferor Company shall be consolidated with the Authorised Capital of the Transferee Company.

(xvi) Filing and issuance of drawn up orders are dispensed with. All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the authenticated copy of this order along Scheme immediately.

21. The Company Petition CP (CAA) No.57 of 2022 connected with CA (CAA) No.33 of 2022 stands disposed of, in terms of the above order.

-SD-	-SD-
KAUSHALENDRA KUMAR SINGH	**DR. MADAN B GOSAVI**
MEMBER (TECHNICAL)	**MEMBER (JUDICIAL)**

Sudha

Annexure - "A"

SCHEME OF ARRANGEMENT

IN THE NATURE OF

AMALGAMATION

BETWEEN

DYTINT SPECIALITIES PRIVATE LIMITED (DSPL)

(THE TRANSFEROR COMPANY)

WITH

ALPS CHEMICAL PRIVATE LIMITED (ACPL)

(THE TRANSFEREE COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

(UNDER SECTIONS 230 TO 232 READ WITH SECTION 61 AND 66

ALONGWITH OTHER APPLICABLE PROVISIONS OF THECOMPANIES

ACT, 2013)

PREAMBLE

This Scheme of Arrangement in the nature of Amalgamation ("Scheme" as more particularly defined hereunder) is presented under Section 230 to 232 read with Section 61 and Section 66 along with other applicable provisions of the Companies Act, 2013 and the rules as prescribed thereunder, including any statutory modification, re-enactments or amendments thereof from time to time (herein referred to as the "Act") and in compliance with Sections 2(1B) and other applicable provisions of the Income Tax Act,1961, rules and regulations thereunder, including any statutory modification, re-enactments or amendments until the Scheme is effective for:

I. Amalgamation of **Dytint Specialities Private Limited ('DSPL')** or 'Transferor Company') with **Alps Chemical Private Limited ('ACPL')** or 'Transferee Company') in the manner as set out in this Scheme, upon this Scheme becoming effective and with Effect from the Appointed Date.

The "Dytint Specialities Private Limited" (DSPL) shall be referred as Transferor Company or Amalgamating Company.

The "Alps Chemicals Private Limited" (ACPL) shall be referred as Transferee Company or Amalgamated Company.

This Scheme also provides for various other matters consequential or otherwise integrally connected herewith.

I. BACKGROUND OF THE COMPANIES

1. Dytint Specialities Private Limited (DSPL) is a private limited company having Corporate Identification Number (CIN) U65910GJ1994PTC023914. The company was originally incorporated on 20.12.1994 in the name of ETA Lease & Finance Pvt. Ltd. Its name was subsequently changed in to its present name Dytint Specialities Private Limited on 09.08.2001. The company is engaged in the business of manufacture and sale of Reactive Dyes, having It's registered office at 5th Floor, Laxmi Chambers, Navjivan Road, Opp. Old Gujarat High Court, Ahmedabad - 380009, in the state of Gujarat and Factory located at Plot No.C/1/126, 131,130/1,130/2 Phase-1, GIDC Industrial Estate, Vatva, Ahmedabad. Income tax Permanent Account Number (PAN) of the company is AAACE4640H. DSPL is a Subsidiary company of ACPL.

2. Alps Chemicals private Limited (ACPL) is private Limited company having Corporate Identification Number (CIN) U24199GJ1985PTC008160. ACPL was incorporated on 08.10.1985 and is a Flagship Company of "Alps Group". ACPL is engaged in the business of manufacture and sale of paper Dyes and Liquid Dyes with its registered office and Manufacturing Facility located at 612 GIDC, Phase IV, Vatva, Ahmedabad - 382445 Gujarat. Permanent Account Number (PAN) of the company is AAACA9523B.

II. Rationale of the Scheme:

- DSPL and ACPL are part of "Alps Group" held directly or Indirectly held by Haresh Bhuta & his Family and Friends, who are promoters of the "**Alps Group**".

As an important step towards achieving cost efficiency the proposed amalgamation would help to achieve the following synergies in terms of cost, time and operational:

- Create a unified structure, instead of separate entities and thereby maintain a simple corporate structure and eliminate duplicate corporate procedures;

- Both the companies are in the same segment manufacturing dyes and therefore it can effectively utilize common infrastructure such as effluent treatment plant, common marketing network, usage of certain key raw materials between both the units so as to effectively reduce the overall cost.

- Significant reduction in the multiplicity of legal and regulatory compliances and thereby result in cost efficiency and reduction in secretarial costs;

- The common requirements under various divisions can be combined which will provide better bargaining power, improvement in time management at all levels, reduce purchase & transaction cost and limited documentation requirement;

- Many functions which are currently handled company-wise and/or division-wise can be combined, resulting into right sizing on the organization. Costs for different types of audit works including statutory audit, internal audit, cost audit, secretarial audit, Tax audit, etc. can go down upon reduction in number of legal entities;

- Consolidation of the business would result into business synergies and eliminate Inter-company transactions;

- Upon Consolidation of business, it would help in utilization of customer relationships and resources at single entity level. This can have a better reach in terms of various customer base and will provide a stronger market position;

- Reduction in various costs on account of consolidation of entities and operations during the COVID 19 pandemic which would thus provide financial stability and sustainability;

- The consolidation will result in better utilization of funds and resources within "Alps Group";

- Such a consolidation will thus result in strengthening the group's capability to best administer the business operations, structure the entities to support the group's growth strategy and reflect a true and fair enterprise value;

III. **Operations of the Scheme**

This Scheme provides for:

(a) This Scheme provides for the Amalgamation of the Transferor Company with the Transferee Company in the manner set out in this Scheme (as defined hereinafter) and other applicable provisions of Applicable Law.

IV. **TREATMENT OF THE SCHEME FOR THE PURPOSE OF INCOME TAX ACT, 1961**

The amalgamation of the Transferor Company with the Transferee Company pursuant to this Scheme shall be in accordance with the provisions of Section 2(1B) of the Income Tax, Act, 1961 such that:

i. All the properties of the amalgamating/Transferor Company immediately before the Amalgamation becomes the properties of the amalgamated/Transferee Company by virtue of the amalgamation.

ii. All the liabilities of the Amalgamating/Transferor Company immediately before the amalgamation becomes the liabilities of the amalgamated/ Transferee Company by virtue of the amalgamation.

iii. Shareholders holding not less than three-fourths in value of the shares in the amalgamating/Transferor Company (other than shares already held therein immediately before the amalgamation by, or by a nominee for, the amalgamated/Transferee Company or its subsidiary) become shareholders of the amalgamated/Transferee Company by virtue of the amalgamation.

iv. If any of the terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of Section 2(1B) of the Income Tax Act, 1961 at a later date including resulting from an amendment in Income Tax law or for any other reason whatsoever, the provisions of Section 2(1B) of the Income Tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the Income Tax Act, 1961. Such modifications shall however not affect the other parts of the Scheme.

PARTS OF THIS SCHEME

This Scheme of Arrangement in the nature of Amalgamation is divided into the following parts: -

Part A deals with Definitions of various capitalised terms as used in this Scheme and Capital Structure of the Transferor Company and Transferee Company;

Part B deals with the Amalgamation of the Transferor Company with the Transferee Company and its consideration thereof;

Part C deals with the General Terms and Conditions applicable to this Scheme.

PART – A

DEFINITIONS, INTERPRETATION AND

CAPITAL STRUCTURE

I. DEFINITIONS:

In this Scheme unless repugnant to the meaning or context thereof,

i. Capitalised Terms defined by inclusion in quotation and/or parenthesis have the meaning so ascribed.

ii. Subject to (iii), all the terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, shall have the same meaning ascribed to them under the Act and other Applicable Law(s), rules, regulations, byelaws, as the case may be or any statutory modification(s) or re-enactment(s) thereof from time to time.

iii. The following expressions shall have the following meanings:

1.1. **"Accounting Standards"** means the Accounting Standards as notified under Section 133 of the Act, as amended from time to time, issued by the Ministry of Corporate Affairs and the other accounting principles generally accepted in India.

1.2. **"Act" or "The Act"** means the Companies Act, 2013/ the Companies Act, 2020 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 as notified and ordinances, rules and regulations made and notifications and circulars as issued thereunder and other applicable provisions, for time being in force, including any statutory modifications, re-enactments or amendments thereof.

1.3. **"Applicable Law"** means any applicable statute, notification, bye laws, rules, regulations, guidelines, rule of common law, policy, code, directives, ordinance, orders or instructions having the force of law enacted or issued by any Appropriate Authority, including any statutory modification or re-enactment or amendments thereof for the time being in force as applicable in India.

1.4. **"Appointed Date"** means opening hours of business on1st day of April 2021.

1.5. **"Appropriate Authority"** means any applicable central, state or local government, legislative body, regulatory, administrative or statutory authority, agency or commission or department or public or judicial body or authority, including, but not limited to Regional Director, Registrar of Companies, NCLT, Official Liquidator and Income – tax Authority.

1.6. **"Board of Directors" or "Board" or "Management"** in relation to the Transferor Company and the Transferee Company, as the case may be, means the Board of Directors of such company, and unless repugnant to the subject, context or meaning thereof, shall be deemed to include every committee (including any committee of directors) or any person authorized by the Board or by any such committee.

1.7. **"Effective Date"** means the last date on which the authenticated copies of certified copies of the Orders of the NCLT, Ahmedabad Branch sanctioning the Scheme are filed with Registrar of Companies, Ahmedabad, Gujarat by the Transferor Company and Transferee Company.

1.8. **"Encumbrance"** means (i) any mortgage, charge (fixed or floating), pledge, lien, option, claim, hypothecation, security interest, power of sale in favour of a third party, right to acquire, right of pre-emption, assignment by way of security or trust arrangement for the purpose of providing security, any security interest or other third party right of any kind (including any retention arrangement), any right, interest or claim of a third party, or any agreement, arrangement or obligation to create any of the foregoing (ii) any voting agreement, interest, option, pre-emptive rights, right of first offer, refusal or transfer restriction in favour of any Person and (iii) any adverse claim as to title, possession or use and "Encumber" shall be construed accordingly.

1.9. **"INR" or "Rs" or "Re" or "Rupee" or "Rupees"** means Indian Rupee(s), lawful currency of Republic of India.

1.10. **"IT Act"** means the Income-tax Act, 1961 and shall include any statutory modifications, re-enactments or amendments thereof for the time being in force.

1.11. **"NCLT" or "Tribunal"** means the bench of the National Company Law Tribunal at Ahmedabad and shall include, if applicable, such other forum or authority as may be vested with the powers of the NCLT under the Act.

1.12. **"Record Date"** means the date to be fixed by the Board of the Transferee Company after giving effect to the Part B of the Scheme and for the purpose of determining the respective equity shareholders of the Transferor Company who shall be entitled to receive the equity shares of the Transferee Company as per Clause 6 of the Scheme.

1.13. **"ROC"** means Registrar of Companies having jurisdiction over the Transferor Company and Transferee Company.

1.14. **"Scheme" or "the Scheme" or "this Scheme"** means this Scheme of Arrangement in the nature of Amalgamation and Arrangement subject to any modification(s) thereto as may be imposed by the Tribunal or any modification(s) sought by the Parties, as confirmed/approved by the Tribunal.

1.15. **"Transferor Company" or "DSPL"** means Dytint Specialities Private Limited, a company incorporated under the Companies Act, 1956 having CIN U65910GJ1994PTC023914 and having It's registered office at 5th Floor, Laxmi Chambers, Navjivan Road, Opp. Old Gujarat High Court, Ahmedabad - 380009, in the state of Gujarat.

1.16. **"Transferee Company" or "ACPL"** means Alps Chemicals private Limited, a company incorporated under the Companies Act, 1956 having CIN U24199GJ1985PTC008160 and having it's registered office at 612 GIDC, Phase IV, Vatva, Ahmedabad - 382445 Gujarat.

2. INTERPRETATION

2.1. In the Scheme, unless the context otherwise requires:

a) references to a statutory provision include any subordinate legislation made from time to time under that provision;

b) references to the singular include the plural and vice versa and references to any gender includes the other gender;

c) references to a statute or statutory provision include that statute or provision as from time to time modified or re-enacted or consolidated and (so far as liability thereunder may exist or can arise) shall include also any past statutory provision (as from time to time modified or re-enacted or consolidated) which such provision has directly or indirectly replaced, provided that nothing in this Clause 2.1 shall operate to increase the liability of any Party beyond that which would have existed had this Clause 2.1 been omitted;

d) references to a document shall be a reference to that document as modified, amended, novated or replaced from time to time;

e) headings are for convenience only and shall be ignored in construing or interpreting any provision of this Scheme;

f) the expression "this Clause" shall, unless followed by reference to a specific provision, be deemed to refer to the whole Clause (and not merely the sub-Clause, paragraph or other provision) in which the expression occurs;

g) references to Clauses are to Clauses of this Scheme;

h) references to any person shall include that person's successors and permitted assigns or transferees;

i) references to the words "include" or "including" shall be construed without limitation;

j) references to the words "hereof", "herein", "hereto" and "hereunder" and words of similar import shall refer to this Scheme as a whole and not to any particular provision of this Scheme; and

k) Where a wider construction is possible, the words "other" and "otherwise" shall not be construed ejusdem generis with any foregoing words.

3. DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the NCLT or made as per Clause 18 (Modifications/Amendments to the Scheme) of the Scheme shall be effective from the Appointed Date but shall be operative from the Effective Date. Any reference in this Scheme with respect to "upon" this Scheme becoming effective" or "effectiveness of this Scheme" shall mean the Effective Date.

4. SHARE CAPITAL

4.1. Share capital structure of Transferor Company viz. DSPL as on 31st March 2021 is as follows:

Particulars	Amount (In Rupees)
a) Authorised Capital	
3000000 (P.Y 3000000) Equity shares of Rs. 10/- each	3,00,00,000
(b) Issued and Subscribed	
1000000 (P.Y 1000000)Equity shares of Rs. 10/- each	1,00,00,000
(c) Called up and fully paid up	
1000000 (P.Y 1000000)Equity shares of Rs. 10/- each fully paid up	1,00,00,000
Total	1,00,00,000

There has been no change in the authorized, issued and paid up share capital subsequent to 31st March 2021 and upto the date of filing of the Scheme with NCLT.

4.2. Share capital structure of the Transferee Company viz. ACPL as on 31st March 2021 is as follows:

Particulars	Amount (In Rupees)
a) Authorised Capital	
3000000 (P.Y 3000000) Equity shares of Rs. 10/- each	3,00,00,000
(b) Issued and Subscribed	
2182500 (P.Y 2182500) Equity shares of Rs10/- each	2,18,25,000
(c) Called up and fully paid up	
2182500 (P.Y 2182500) Equity shares of Rs10/- each fully paid up	2,18,25,000
Total	**2,18,25,000**

There has been no change in the authorized, issued and paid up share capital subsequent to 31st March 2021 and upto the date of filing of the Scheme with NCLT.

PART B

AMALGAMATION OF THE TRANSFEROR COMPANY

WITH THE TRANSFEREE COMPANY

5. TRANSFER AND VESTING OF ASSETS AND LIABILITIES OF THE TRANSFEROR COMPANY INTO TRANSFEREE COMPANY.

All the assets and liabilities of Transferor Company shall be transferred to and vested in or deemed to be transferred and vested in Transferee Company in following manner:

5.1. Upon this Scheme becoming effective and with effect from the Appointed Date, and subject to the provisions of the Scheme in relation to mode of transfer and vesting, all the assets and liabilities of Transferor Company shall without any further act, instrument or deed, be and stand transferred to and vested in and/ or be deemed to have been transferred to and vested in Transferee Company so as to become, on and from the Appointed Date the estate, assets, rights, title, interests and authorities of the Transferee Company, pursuant to the provisions of Sections 230 to 232 of the Act.

5.2. Without prejudice to generality of the aforesaid Clause 5.1 above, all assets (including intangible assets) and properties of the Transferor Company as are movable in nature or incorporeal property or otherwise capable of transfer by delivery of possession or by endorsement and / or delivery, the same shall stand so transferred by the Transferor Company upon this Scheme becoming effective, to the end and intent that the rights, titles, interest and property therein passes to Transferee Company and shall, become the assets and property of Transferee Company with effect from the Appointed Date pursuant to the provisions of Section 230 to 232 of the Act and all other applicable provisions, if any, without

requiring any deed or instrument of conveyance for transfer of the same. No additional stamp duty shall be payable on the transfer of such movable properties (including shares and other investments) upon its transfer and vesting in the Transferee Company.

5.3. In respect of other assets or properties pertaining to the Transferor Company including but not limited to actionable claims, sundry debtors, outstanding loans, advances, recoverable in cash or kind or for value to be received, earnest monies, cash, bank balances and deposits, bills, etc, and deposits / bonds with the government, semi-government, local and other authorities and bodies, customers or any other person, the same shall, without any further act, instrument or deed, without any notice, intimation to any person in, be transferred and vested in Transferee Company on the Effective Date pursuant to the provisions of Section 230 to Section 232 and all other applicable provisions, if any, of the Act, with effect from the Appointed Date. It is hereby clarified that all the investments made by the Transferor Company and all the rights, title and interests of Transferor Company in any leasehold properties or assets of the Transferor Company shall, pursuant to Section 230 to 232 and all other applicable provisions, if any, of the Act and the provisions of this Scheme, without any further act or deed, be transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company.

5.4. All immovable properties (including land together with the building and structures standing thereon and rights and interest in immovable properties) of the Transferor Company, whether freehold or leasehold and any documents of title, rights and easements in relation thereto shall stand transferred to and be vested and / or be deemed to have been vested in the Transferee Company, without any act or deed done by the Transferor Company or Transferee Company. With effect from the

Appointed Date, the Transferee Company shall be entitled to exercise all rights and privileges and be liable to pay ground rent, municipal taxes and fulfil all obligations, in relation to or applicable to such immovable properties.

5.5. Notwithstanding any provision to the contrary, until the owned properties, leasehold property and related rights thereto, license or right to use the immovable property, tenancy rights, liberties and special status are transferred, vested, recorded, effected and/or perfected in the records of the appropriate authorities in the favour of the Transferee Company shall be deemed to be authorised to carry on business in the name and style of the Transferor Company under relevant agreement, deed, lease and/or license, as the case may be, and the Transferee Company shall keep a record and account of such transaction.

5.6. In respect of such of the assets belonging to the Transferor Company other than referred to in Clauses 5.1 to Clause 5.5 above, the same shall be transferred to and vested in and / or deemed to be transferred to and vested in the Transferee Company on the Appointed Date pursuant to the provisions of Section 230 to 232 of the Act without any further act or deed.

5.7. All debts, loans and liabilities including contingent liabilities, including secured or unsecured, duties and obligations of the Transferor Company as on the Appointed Date and all other liabilities which may accrue or arise after the Appointed Date but which relate to the period on or up to the day of the Appointed Date shall be the debts, loans and liabilities, duties and obligations of the Transferee Company including any Encumbrance on the assets of the Transferor Company or any income earned on those assets.

5.8. All permits, approvals, consents, quotas, rights, authorizations, entitlements, no-objection certificates and licenses including but not limited to licenses granted by any governmental, statutory or regulatory body and including those relating to tenancies, privileges, powers and facilities of every kind and description of whatsoever nature including approvals under process, to which the Transferor Company is a party or to the benefit of which the Transferor Company may be entitled to use or which may be required to carry on the operations of the Transferor Company and which are subsisting or in effect immediately prior to the Effective Date shall be, and remain, in full force and effect in favour of the Transferee Company and may be enforced as fully and effectually as if, instead of Transferor Company, Transferee Company had been a party, a beneficiary or an oblige thereto and shall be appropriately mutated by the relevant statutory authorities or any third party in favour of the Transferee Company in accordance with Applicable Law.

5.9. The entitlement to various current and/ or future benefits, privileges including but not limited to incentive schemes, exemption schemes, subsidies/grant, tax holiday, any refund enjoyed/conferred upon/held/ availed of by the Transferor Company in relation to the Transferor Company shall stand transferred to and be vested in and/ or deemed to have been transferred to and vested in the Transferee Company together with all benefits, entitlements and incentives of any nature whatsoever. Such entitlements shall include incentives available under Applicable Laws in relation to the Transferor Company to be claimed by the Transferee Company with effect from the Appointed Date as if the Transferee Company was originally entitled to all such benefits under such incentive schemes and/or policies, subject to continued compliance by the Transferee Company of all the terms and conditions based on which the benefits under such incentive schemes were made available to Transferor Company.

5.10. The Transferee Company, at any time upon this Scheme becoming effective in accordance with the provisions hereof, if so required under any law or otherwise, execute deeds, writings, confirmations or notices with, or in favour of, any other party to any contract or arrangement to which the Transferor Company is the party or any writings as may be necessary to be executed in order to give formal effect to the provisions of the Scheme. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Transferor Company and to implement and carry out all such formalities or compliance referred to above for and on behalf of the Transferor Company.

5.11. Upon this Scheme becoming effective and with effect from the Appointed Date, all liabilities, including, without limitation, all secured and unsecured debts (whether in Indian rupees or foreign currency), sundry creditors, contingent liabilities, duties, obligations of every kind, nature and description whatsoever and howsoever arising, raised, incurred or utilized for their business activities and operations in relation to the Transferor Company, shall, pursuant to this Scheme becoming effective and under the provisions of Section 230 to Section 232 of the Act and other applicable provisions, if any, of the Act, without any further act, instrument, deed, matter or thing being made, done or executed, be transferred to, and vested in, or be deemed to have been transferred to, and vested in, Transferee Company, and such liabilities shall be assumed by the Transferee Company to the extent they are outstanding as on the Effective Date so as to become, as on and from the Appointed Date, the liabilities, debts, duties and obligations of Transferee Company on the same terms and conditions as were applicable to Transferor Company, and Transferee Company shall meet, discharge and satisfy;

the liabilities and it shall not be necessary to obtain the consent of any third party or any other person who is a party to any contract or arrangement by virtue of such liabilities have arisen in order to give effect to the provisions of this Clause.

5.12. All debts, liabilities including contingent liabilities, including secured or unsecured, along with any charge, Encumbrance(s), or security(ies) created by the Transferor Company and any other direct or indirect subsidiary(ies) of any Party, duties and obligations of the Transferor Company and any other direct or indirect subsidiary(ies) of any Party shall, as on the Appointed Date, whether or not provided in the books of the Transferor Company, and all debts and loans raised and used, and duties, liabilities and obligations incurred or which arise or accrue to the Transferor Company on or after the Appointed Date till the Effective Date shall be deemed to be and shall become the debts, loans raised and used, duties, liabilities and obligations incurred by the Transferee Company by virtue of the Scheme. It is hereby clarified that the debt, liabilities along with any charge, Encumbrance(s)or security(ies) shall be taken over by the Transferee Company at the same terms and conditions as applicable to Transferor Company and any other direct or indirect subsidiary(ies) of any Party This Scheme shall not result or deemed to result in enhancement of the Encumbrance(s) or security(ies) against the loan/ debt/ liabilities availed/ outstanding of the Transferor Company which shall vest in the Transferee Company by virtue of this Scheme. Further, the Transferee Company shall not be obliged or deemed to be obliged to create any additional Encumbrance(s) or security(ies) against the assets or properties of Transferee Company. Further, no additional stamp duty shall be payable on the transfer and vesting of such debt, liabilities along with any charge, Encumbrance(s), or security(ies) to Transferee Company except in case where the required Encumbrance(s) or security(ies) has not been created and in such case if the terms

thereof requires, the Transferee Company will create Encumbrance(s) or security(ies) in terms of the issue or arrangement in the relation thereto. This Scheme shall not result or deemed to result in enhancement of existing Encumbrance(s) or security(ies) against the loan/ debt/ liabilities availed/ outstanding in the Transferee Company and in no manner the Encumbrance(s) or security(ies) shall include the assets or properties being transferred from Transferor Company to Transferee Company.

5.13. Where any such debts, liabilities, duties and obligations of the Transferor Company as on the Appointed Date have been discharged by the Transferor Company on or after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to be for and on account of the Transferee Company upon this Scheme becoming effective.

5.14. All loans raised and utilized and all liabilities duties and obligations incurred or undertaken by the Transferor Company on or after the Appointed Date and prior to the Effective Date shall be deemed to have been raised, used, incurred or undertaken for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date, shall, upon this Scheme becoming effective and under the provisions of Sections 230 to 232 of the Act, without any further act, instrument or deed be and shall be transferred to and vested in the Transferee Company and shall become the loans and liabilities, duties and obligations of the Transferee Company which shall meet, discharge and satisfy the same.

5.15. For avoidance of doubt and without prejudice to generality of the applicable provisions of the Scheme, it is clarified that with effect from the Effective Date and till such time that the name in the bank accounts of the Transferor Company have been replaced with that of the Transferee

Company, the Transferee Company shall be entitled to operate the bank accounts of the Transferor Company in the name of Transferor Company in so far as may be necessary. All cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of Transferor Company after the Effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company, if presented by the Transferee Company. The Transferee Company shall be allowed to maintain bank accounts in the name of the Transferor Company for such time as may be determined to be necessary by the Transferee Company for presentation of deposition of cheques or pay orders or any electronic mode that have been issued or received in the name of the Transferor Company. It is hereby expressly clarified that upon this Scheme becoming effective, any legal proceedings by or against the Transferor Company in relation to the cheques and other negotiable instruments, payments order received or presented for encashment which are in the name of Transferor Company shall be instituted, or as the case may be, continued by or against the Transferee Company. With effect from the Effective Date and till the time any regulatory registrations of the Transferor Company are expired or suspended or under process and for the same, if any regulatory filings are required to be done on such registrations, the Transferee Company shall be entitled to do so to comply with the relevant regulations.

5.16. Any amount including refund if any under the Applicable Laws due to the Transferor Company consequent to the assessment proceedings or otherwise and which may not have been received by the Transferor Company as on the date immediately preceding the Appointed Date shall also belong to and be receivable by or be paid or made good to the Transferee Company upon this Scheme becoming effective.

5.17. The Scheme shall not, in any manner, effect the rights of any of the creditors of the Transferee Company.

5.18. If and to the extent there are investments, loans, deposits, advances, transactions or balances inter-se between the Transferor Company and Transferee Company, the obligations in respect thereof shall, on and from the Appointed Date, shall stand cancelled and suitable effect from the Effective Date shall be given from the Effective Date. There would be no accrual of interest or other charges in respect of any such investments, loans, deposits or balances inter-se between the Transferor Company, from the Appointed Date.

6. CONSIDERATION

6.1. Upon this Scheme becoming effective, in consideration of the amalgamation of the Transferor Company with the Transferee Company, the Transferee Company shall, without any further act or deed, issue and allot its shares, at par credited as fully paid up to the extent indicated below, to the members of Transferor Company, whose name is recorded in the register of members of the Transferor Company on the **Record Date** in the following ratio:

With respect to the Equity Shareholders of the Transferor Company:-

"1 (One) Equity Shares of the Transferee Company of the face value of INR 10/- (Rupees Ten only) each, credited as fully paid-up for every 3 (Three) Equity Share of INR 10/- (Rupees Ten only) each fully paid-up held by such members in the Transferor Company".

6.2. The valuation report dated 23.03.2022, providing fairness opinion on the share exchange ratio has been obtained from RV Avinash Kothari, Registered Valuer, having IBBI Registration No IBBI/RV/05/2020/12837.

6.3. The equity shares issued and allotted pursuant to the Scheme of Arrangement in the nature of Amalgamation and Arrangement shall be hereinafter referred to as '**New Equity Shares**'.

6.4. The New Equity Shares shall be issued and allotted by the Transferee Company in physical form or dematerialised form, as applicable, to the respective shareholder(s) of Transferor Company.

6.5. Upon this Scheme becoming effective and upon the New Equity Shares being issued and allotted as per Clause 6.1 above, the equity shares of Transferor Company in dematerialised form or physical form shall be deemed to have been automatically cancelled and be of no effect on and from the Record Date.

6.6. The Transferee Company in respect of fractional entitlement shall issue no fractional shares, if any, to the Shareholders of the Transferor Company and the fractions shall be rounded up to the nearest whole number. Further, each Shareholder of the Transferor Company shall get at least one share of the Transferee Company.

6.7. The New Equity Shares to be issued and allotted as per Clause 6.1 above shall be subject to the provisions of Memorandum and Articles of Association of the Transferee Company and shall rank pari-passu in all respects with the equity shares of the Transferee Company as on

Effective Date, including that any dividend that may be declared by the Transferee Company on or after the Effective Date.

6.8. The issue and allotment of 'New Equity Shares' to the respective Shareholders of the Transferor Company as provided in this Scheme, is an integral part thereof and shall be deemed to have been carried out without requiring any further act on the part of the Transferee Company or its shareholders and as if the procedure laid down under Sections 42 and 62 of the Act and any other applicable provisions of the Act, and such other statues and regulations as may be applicable were duly complied with.

6.9. Transferee Company is holding 5,89,030 (five lakhs eighty nine thousands thirty only) Equity Shares of Transferor Company, accordingly pursuant to the amalgamation of Transferor company into the Transferee company on the Appointed date, equity shares held by Transferee Company shall be cancelled and extinguished and hence, shares of the Transferee Company shall be issued and allotted to the remaining shareholders of the Transferor Company.

7. ACCOUNTING TREATMENT FOR AMALGAMATION

7.1. Notwithstanding anything to the contrary herein, upon this Scheme becoming effective and with effect from the Appointed Date, the Transferee Company shall give effect to the accounting treatment in the books of account in accordance with the accounting standards specified under section 133 of the Act read with the Companies (Accounting) Rules, 2014, as amended and other accounting principles generally accepted in India or related requirements under the Act, as applicable on the Appointed Date.

8. VALIDITY OF EXISTING RESOLUTIONS, REGISTRATIONS, ETC.

The resolutions including but not limited to board meetings, shareholder meetings, other committee meetings, if any, of the Transferor Company, which are valid and subsisting on the Effective Date, shall be continued to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have upper monetary or other limits being imposed under the provisions of the Act, or any other applicable provisions, then the said limits shall be added and shall constitute the aggregate of the said limits in the Transferee Company.

9. CONTRACTS, DEEDS, APPROVALS, EXEMPTIONS, ETC.

9.1. Upon this Scheme becoming effective and subject to the provisions of this Scheme, all contracts, deeds, bonds, agreements, schemes, insurance policies, indemnities, guarantees, arrangements and other instruments (including but not limited to all tenancies, leases, licenses, supply agreements, memorandum of understanding and other assurances) in favour of the Transferor Company or powers of authorities granted by or to the Transferor Company whether pertaining to immovable properties or otherwise of whatsoever nature to which the Transferor Company is a party or to the benefit of which the Transferor Company may be eligible, and which are subsisting or have effect immediately before the date of NCLT approval to the Scheme is received, shall continue in full force and effect on or against or in favour of, as the case may be, of the Transferee Company and may be enforced as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or beneficial owner or oblige thereto or there under.

9.2. For the avoidance of doubt and without prejudice to the generality of the foregoing, it is clarified that upon this Scheme becoming effective, all consents, permissions, licenses, registrations, certificates, clearances, authorities, power of attorney given by, issued to or executed in favour of or by the Transferor Company including all approvals under process shall stand transferred to the Transferee Company as if the same were originally given by, issued to or executed in favour of Transferee Company shall be bound by the terms thereof, the obligations and duties there under, and the rights and benefits under the same shall be available to the Transferee Company shall make applications and do all such acts or things which may be necessary to obtain relevant approvals from the concerned Governmental Authorities as may be necessary in this behalf.

9.3. The Transferee Company at any time upon this Scheme becoming effective in accordance with the provisions hereof, if so required under any law or otherwise, will execute deeds of confirmation or other writings or arrangements with any party to any contract or arrangement to which the Transferor Company is a party in order to give formal effect to the above provisions. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Transferor Company and to carry out or perform all such formalities or compliances, referred to above, on behalf of the Transferor Company.

9.4. It is further clarified that upon this Scheme becoming effective with respect to approvals, permissions, licenses, registrations, consents that may require amendment for the purpose of giving effect to this Scheme and to ensure that there is no change in the entitlements otherwise available to the Transferor Company in the absence of this Scheme, the

Transferee Company shall be permitted to use the name and approvals, permissions, licenses, registrations, consents of the Transferor Company till such approvals, permissions, licenses, registrations, consents are so amended and updated, so as to enable the Transferee Company to continue to avail the entitlements otherwise available to the Transferor Company.

9.5. The inter-se contracts between the Transferor Company and the Transferee Company if any shall stand adjusted and shall come to an end upon this Scheme becoming effective. Transactions if any, between the Transferor Company and the Transferee Company after the Appointed Date and until the Effective Date will be squared off in the books of account of the Transferee Company upon this Scheme becoming effective.

10. LEGAL PROCEEDINGS

10.1. All legal proceedings of whatsoever nature by or against the Transferor Company pending and/ or arising on or after the Appointed Date and relating to the Transferor Company shall not abate or be discontinued or be in any way prejudicially affected by reason of the Scheme or by anything contained in this Scheme but shall be continued and enforced by or against Transferee Company in the manner and to the same extent as would or might have been continued and enforced by or against the Transferor Company if this Scheme had not been made.

10.2. The Transferee Company undertakes to have all legal or other proceedings initiated by or against the Transferor Company referred to in Clause 10.1 above transferred in its name respectively and to have the same continued, prosecuted and enforced by or against Transferee

Company to the same extent as would or might have been continued and enforced by or against the Transferor Company.

11. STAFF, WORKMEN & EMPLOYEES

11.1. Upon this Scheme becoming effective, all employees of the Transferor Company in service as on the Effective Date shall be deemed to have become employees of the Transferee Company without any break, discontinuance or interruption in their service and on the basis of continuity of service, and the terms and conditions of their employment with Transferee Company shall be the same as those applicable to them with reference to the Transferor Company as on the Effective Date. The Transferee Company further agrees that for the purpose of payment of any retirement benefit/compensation, such immediate uninterrupted past services with the Transferor Company shall also be taken into account and paid (as and when payable) by Transferee Company.

11.2. In so far as the existing provident fund and/or any other funds or benefits created by the Transferor Company (collectively referred to as the "Funds"), the Funds and such of the investments made by the Funds which pertains/relates to the employees of the Transferor Company shall be transferred to the Transferee Company and shall be held for their benefit pursuant to this Scheme in the manner provided hereinafter. The Funds shall, subject to the necessary approvals and permissions and at the discretion of the Transferee Company, either be continued as separate funds of the Transferee Company for the benefit of the employees of the Transferor Company or be transferred to and merged with other similar funds, if any, of the Transferee Company. In the event that the Transferee Company does not have its own funds in respect of any of the above, the Transferee Company may, subject to necessary approvals and permissions, continue to contribute to the relevant Funds

of the Transferor Company, until such time that the Transferee Company creates its own fund, at which time the Funds and the investments and contributions pertaining to the employees of the Transferor Company shall be transferred to the funds created by the Transferee Company. It is clarified that the services of the employees of the Transferor Company will be treated as having been continuous for the purpose of the said fund or funds.

11.3. With effect from the filing of this Scheme with the NCLT and up to and including the Effective Date, the Transferor Company shall not vary or modify the terms and conditions of employment of any of their said employees, except with the written consent of Transferee Company, unless it is in the ordinary course of business. However, the terms and conditions of their employment with Transferee Company shall be the same as those on which they were engaged in Transferor Company.

11.4. In relation to those employees for whom the Transferor Company is making contributions to the government provident fund or any other statutory contributions as per the Applicable Laws, if any, the Transferee Company shall stand substituted for the Transferor Company as the case may be, for all purposes whatsoever, including relating to the obligation to make contributions to the said fund in accordance with the provisions of such fund, bye laws, etc. in respect of such employees.

12. CONDUCT OF BUSINESS UNTIL THE EFFECTIVE DATE

12.1 With effect from the Appointed Date and up to and including the Effective Date, the Transferor Company shall carry on their businesses with reasonable diligence and except in the ordinary course of business, the Transferor Company shall not, without prior written consent (as applicable) of the Transferee Company or pursuant to any pre-existing

obligation, sell, transfer or otherwise alienate, charge, mortgage, encumber or otherwise deal with, or dispose of, any of the assets of the Transferor Company or any part thereof.

12.2 With effect from the Appointed Date and up to and including the Effective Date, the Transferor Company shall carry on and be deemed to have carried on all businesses and activities and shall stand possessed of all assets, rights, title and interest of the Transferor Company for and on account of, and in trust for the Transferee Company.

12.3 With effect from the Appointed Date and up to and including the Effective Date, all profits and cash accruing to or losses arising or incurred [including the effect of all taxes (for instance income tax, customs duty, Goods and Services Tax ("GST"), etc.) if any thereon], by the Transferor Company shall for all purposes, be treated as the profits and cash, taxes or losses of the Transferee Company.

12.4 With effect from the Appointed Date and up to and including the Effective Date, any of the rights, powers, authorities or privileges exercised by Transferor Company shall be deemed have been exercised by the Transferee Company for and on behalf of, and in trust for as an agent of the Transferee Company. Similarly, any of the obligations, duties and commitments that have been undertaken or discharged by the Transferor Company shall be deemed to have been undertaken for and on behalf of and as an agent for Transferee Company shall be entitled to apply to the Central.

12.5 The Transferee Company shall entitled to apply Central Government or any other Government or statutory or regulatory authorities/ agencies/ body concerned as are necessary under any law for such consents, approvals, licenses, registrations and sanctions which the Transferee

Company may require to carry on the business of the Transferor Company.

13. SAVING OF CONCLUDED TRANSACTIONS

13.1 The transfer and vesting of the assets, liabilities and obligations pertaining/relating to the Transferor Company, pursuant to this Scheme, and the continuance of the proceedings by or against the Transferee Company, under Clause 5, Clause 9 and Clause 10 hereof shall not affect any transactions or proceedings already completed by the Transferor Company, on and after the Appointed Date to the end and intent that Transferee Company accepts all acts, deeds and things done and executed by and/ or on behalf of the Transferor Company, as acts, deeds and things done and executed by and on behalf of Transferee Company.

14. TREATMENT OF TAXES/TAX CREDITS

14.1 Any tax liabilities under the IT Act, Wealth-tax Act, 1957, Customs Act, 1962, Central Excise Act, 1944, Central Sales Tax Act, 1956 , any other state Sales Tax/Value Added Tax laws, Service Tax, Goods and Service Tax, Stamp Act, registration fees, foreign tax credits under applicable foreign tax laws including but not limited to German VAT and Austria VAT laws or any other applicable laws/regulations (hereinafter in this Clause referred to as "Tax Laws") dealing with taxes/duties/levies allocable or related to the business of the Transferor Company to the extent not provided for or covered by tax provision in the Accounts made as on the date immediately preceding the Appointed Date shall be transferred to the Transferee Company.

14.2 All taxes (including but not limited to income tax and tax deducted at source, wealth tax, sales tax, excise duty, customs duty, service tax, GST, Value added Tax ("VAT"), Goods and Service Tax, advance tax, tax collected at source etc.) paid or payable by the Transferor Company in respect of the operations and/or the profits of the business on and from the Appointed Date under the Tax Laws, shall be on account of the Transferee Company and, in so far as it relates to the tax payment under the Tax Laws (including without limitation income tax, wealth tax, sales tax, excise duty, customs duty, service tax, GST, VAT, etc.), whether by way of deduction at source, collection at source, advance tax or otherwise howsoever, by the Transferor Company in respect of the profits or activities or operation of the business on and from the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company, and shall, in all proceedings, be dealt with accordingly. Further, all taxes paid and taxes deducted at source and deposited by the Transferee Company on inter se transactions between the Transferee Company and the Transferor Company during the period between the Appointed Date and the Effective Date shall be treated as advance tax paid by the Transferee Company and shall be available to the Transferee Company for set- off against its liability under IT Act and any excess tax so paid shall be eligible for refund together with interest.

14.3 Any refund under the Tax Laws including but not limited to input tax credit, export refund, incentives, income tax refund, etc due to the Transferor Company consequent to the assessments made on the Transferor Company and for which no credit is taken in the accounts as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company.

14.4 Without prejudice to the generality of the above, all benefits including claim of tax deduction at source, tax collection at source, advance tax and self-assessment tax and any similar credits or balances under the income tax, sales tax, excise duty, customs duty, service tax, GST, VAT, Minimum Alternate Tax (MAT) Credit etc., or unabsorbed depreciation, brought forward losses to which the Transferor Company are entitled to in terms of the applicable Tax Laws of the Union and State Governments, shall be available to and vest in the Transferee Company even if the prescribed time limits for claiming such refunds or credits have lapsed. Similarly, the unabsorbed depreciation and brought forward losses of the Transferor Company as considered for the purposes of Explanation 1 to Section 115JB (2) of the IT Act shall stand transferred to the Transferee Company and the Transferee Company shall consolidate the same with its unabsorbed depreciation and brought forward losses for the purpose of Explanation 1 to Section 115JB (2) of the IT Act.

14.5 For avoidance of doubt and without prejudice to generality of the applicable provisions of the Scheme, it is clarified that upon this Scheme being Effective, the Transferee Company is also expressly permitted to revise its income tax returns, withholding tax returns, service tax returns, value added tax returns, sales tax returns, Goods and Service Tax (GST), excise and CENVAT returns and any other statutory returns and filings under the tax laws, notwithstanding that the period of filing/ revising such return may have lapsed, to obtain TDS Certificates, including TDS Certificates relating to transactions between the Transferor Company and the Transferee Company and to claim refunds, advance tax, withholding tax credits etc. pursuant to the provisions of this Scheme.

14.6 For avoidance of doubt and without prejudice to generality of the applicable provisions of the Scheme, it is clarified that upon the Scheme being effective, any TDS certificates issued by the Transferee Company to, or for the benefit of, the Transferor Company under IT Act with respect to the inter se transactions would be available to the Transferee Company to seek refund of from the tax authorities in compliance with law. Further, TDS deposited, TDS Certificates issued or TDS returns filed by the Transferor Company on transactions other than inter se transactions during the period between the Appointed Date and the Effective Date shall continue to hold good as if such TDS amounts were deposited, TDS Certificates were issued and TDS returns were filed by the Transferee Company. Any TDS deducted by, or on behalf of, the Transferor Company on inter se transactions will be treated as advance tax deposited by Transferee Company.

14.7 The Amalgamation as contemplated in this Scheme would be completed in a manner so as to comply with the conditions relating to 'amalgamation' as specified under section 2(1B) of the IT Act. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said section at the later date including resulting from a retrospective amendment of law or for any other reason whatsoever, the provisions of the said section of the IT Act shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with section 2(1B) of the IT Act. Such modification will however not affect the other parts of the Scheme. Furthermore, all credits or balances eligible for roll-over, set-off or carry forward under the IT Act including under Chapter VI of the IT Act shall be given effect to in compliance with the applicable provisions of the IT Act.

15. CONSOLIDATION OF AUTHORIZED CAPITAL AND AMENDMENT TO THE MEMORANDUM AND ARTICLES OF ASSOCIATION OF THE TRANSFEREE COMPANY

15.1. Upon this Scheme becoming effective, the authorized share capital of the Transferor Company amounting to Rs. 3,00,00,000 (Rupees Three Crores Only) consisting of 30,00,000 (Thirty Lakhs) equity shares of Rs 10/- (Rupees Ten) each or such amount as may be on the Effective Date, shall be consolidated with the authorized share capital of the Transferee Company without any further act or deed and without any liability for payment of any additional fees or stamp duty in respect of such increase as the stamp duty and fees have already been paid by the Transferor Company on such authorized capital.

15.2. It is hereby clarified that, upon this Scheme becoming effective, the authorized share capital of the Transferee Company upon consolidation of the authorised capital as per Clause 15.1 shall be Rs. 6,00,00,000/- (Rupees Six Crores only) divided into 60,00,000 (Sixty Lakhs only) equity sharesof Rs. 10/- (Rupees Ten only) each.

15.3. The Authorized Share Capital of the Transferee Company shall stand increased as per Clause 15.2 upon the Scheme becoming effective without any further act or deed on the part of the Transferee Company and the Memorandum of Association and Articles of Association of the Transferee Company (relating to the authorized share capital) shall without any further act, instrument or deed be and stand altered, modified, amended and the consent of the shareholders to the Scheme shall be deemed to be sufficient for the purposes of effecting this amendment and no further resolution(s) under Sections 13, 14, 61 and applicable provisions of the Act would be required to be separately passed, as the case may be. For this purpose, the filing fees and stamp

duty already paid by the Transferor Companies towards their authorised share capital shall be utilised and applied to the increased authorised share capital of the Transferee Company, and shall be deemed to have been so paid by the Transferee Company on such combined authorised share capital and, accordingly, the Transferee Company shall not be required to pay any fees/ stamp duty on the authorised share capital so increased. However, for any additional increase in authorized share capital as required necessary fees as per the provisions of the Act and stamp duty would be required to be paid.

15.4. It is clarified that the approval of the members of the Transferee Company to the Scheme shall be deemed to be their consent/approval also to the alteration of the Memorandum and Articles of Association of the Transferee Company as may be required under the Act, and Clause V of the Memorandum of Association of the Transferee Company.

The amended clause shall read as:

"The authorized share capital of the company is Rs. 6,00,00,000/- (Rupees Six Crores only) divided into 60,00,000 (Sixty Lakhs only) equity shares of Rs 10 (Rupees Ten only) each."

PART C: GENERAL TERMS AND CONDITIONS

16. APPLICATION TO THE NCLT

16.1 The Transferee Company shall with all reasonable dispatch, make all necessary applications and/or petitions under Sections 230 to 232 read with Section 61 and Section 66 and other applicable provisions of the Act (as maybe necessary) to the NCLT, for seeking orders for dispensing with or convening, holding and conducting of the meetings of the members and creditors, as necessary, and for sanctioning this Scheme with such modifications as may be approved by NCLT, and for such other order or orders, as the NCLT or any other Appropriate Authority of the relevant jurisdiction, may deem fit for carrying this Scheme into effect and for dissolution /deregistration of the Transferor Company in accordance with the laws in the relevant jurisdiction.

16.2 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to any governmental authority, if required under any law for such Government approvals which the Transferee Company may require to own the businesses of the Transferor Company, respectively and to carry on the business of the Transferor Company respectively.

17. CONDITIONALITY TO THE SCHEME

The Scheme is and shall be conditional upon and subject to:

i. The sanction of this Scheme by the NCLT or any other appropriate authority under Sections 230 to 232 read with section 61 and 66 and other applicable provisions, if any of the Act in favour of the Transferee Company and the Transferor Company.

ii. The Scheme being approved by the requisite majority in number and value of such classes of persons including the respective members and / or creditors of the Transferor Company and the Transferee Company as may be directed by the NCLT.

iii. The requisite consent, approval or permission of the governmental authority which by law may be necessary for the implementation of this Scheme.

iv. Certified or authenticated copies of the order of the NCLT sanctioning the Scheme being filed with the ROC, Gujarat by the Parties.

18. MODIFICATIONS/AMENDMENTS TO THE SCHEME

18.1 The Transferee Company and the Transferor Company by their respective Board of Directors or such other person or persons as the respective Board of Directors may authorise, including any committee or sub-committee thereof, may make and/or assent to any modifications/amendments to the Scheme or to any conditions or limitations that the NCLT and/or any other authority, as may deem fit to direct or impose or which may otherwise be considered necessary, desirable or appropriate by them (i.e. the Board of Directors or such other person or persons as the respective Board of Directors may authorise, including any committee or sub-committee thereof). The Transferee Company and the Transferor Company by their respective Board of Directors be and are hereby authorized to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions of law or otherwise, whether by reason of any directive or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/or any matter

concerned or connected therewith. The aforesaid powers of the Board shall be exercised with the approval of the NCLT.

18.2 If any part and/or Clause of this Scheme are found to be unworkable for any reason whatsoever, the same shall not, subject to decision of the Transferor Company and Transferee Company through their respective Board, affect validity or implementation of other parts and/ or clauses or provisions of the Scheme.

18.3 Further it is the intention of the Parties that each part shall be severable from the remainder of this Scheme and the Scheme shall not be effected if any part of this Scheme is found to be unworkable for any reason whatsoever unless the deletion of such part shall cause this Scheme to become materially adverse to any Party, in which case Parties shall attempt to bring about a modification in this Scheme or cause such part to be null and void, including but not limited to such part.

19. DISSOLUTION WITHOUT WINDING UPOF THE TRANSFEROR COMPANY

19.1 Upon this Scheme becoming effective the Transferor Company shall stand dissolved without being wound up without any further act by the Parties.

19.2 Any obligations/ steps which need to be undertaken by the Transferor Company pursuant to the sanction of this Scheme shall be fulfilled by the Transferee Company.

20. SEQUENCING OF EVENTS

20.1 Upon the sanction of this Scheme and upon this Scheme becoming effective, the following shall be deemed to have occurred / shall occur and become effective and operative, only in the sequence and in order mentioned as under:

a) Amalgamation of the Transferor Company with the Transferee Company in accordance with the Scheme.

b) Dissolution of the Transferor Company without winding-up, in accordance with Clause 19 of this Scheme.

c) Transfer and Consolidation of Authorized Capital of Transferor Company to the Transferee Company in accordance with the Clause 15 of the Scheme

d) Issue and allotment of New Equity Shares of the Transferee Company to the Shareholders of the Transferor Company and/or Transferee Company as on the Record Date, in accordance with Clause 6 of this Scheme.

21. EFFECT OF NON-RECEIPT OF APPROVALS

In the event of any of the said sanctions and approvals referred to in Clause 17 not being obtained and/or the Scheme not being sanctioned by the NCLT or such other appropriate authority, if any, this Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and/ or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be

preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law and agreed between the respective parties to this Scheme. Each party shall bear and pay its respective costs, charges and expenses for and or in connection with the Scheme unless otherwise mutually agreed.

22. COSTS, CHARGES AND EXPENSES

22.1 All costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed) arising out of or incurred in carrying out and implementing this entire Scheme and matters incidental thereto shall be borne by the Transferee Company and/or the Transferee Company.

22.2 In the event that this Scheme fails to take effect or the Scheme is revoked in terms of Clause 21 of this Scheme then, the Transferee Company and the Transferor Company shall bear their own costs and expenses incurred by them respectively in relation to or in connection with the Scheme unless otherwise mutually agreed.

23. NO CAUSE OF ACTION

No third party claiming to have acted or changed its position in anticipation of the Scheme taking effect, shall get any cause of action against the Transferor Company or Transferee Company or their directors or officers, if this Scheme does not take effect or is withdrawn, cancelled, revoked, amended or modified for any reason whatsoever.

24. RESIDUAL PROVISIONS

24.1 Upon this Scheme becoming effective with effect from the Effective Date

a) The Transferee Company shall be entitled to operate and enforce all pending Contracts and transactions in the name of the Transferor Company to the extent necessary until the transfer of the rights and obligations of the Transferor Company to the Transferee Company under the Scheme is formally accepted and completed by the Parties concerned.

b) In order to ensure the smooth transition and sales of products and inventory of the Transferor Company, manufacture and/or branded and/or labelled and/or packed in the name of the Transferor Company, the Transferee Company shall have the right to own, use, market, sell, exhaust or in any manner deal with any such products and inventory (including packing material) pertaining to the Transferor Company at any manufacturing locations or warehouses or retail stores or elsewhere, without making any modification whatsoever to such products and/or their branding, packing or labelling. All invoices/payment related documents pertaining to such products and inventory (including packing material) shall be raised in the name of the Transferee Company after the Effective Date.

24.2 The Transferee Company may in accordance with the provisions hereof, if so required under any Law or otherwise, enter into, or issue or execute deeds, writings, confirmations, novations, declarations, or other documents with, or in favour of, any party to any Contract or arrangement to which the Transferor Company is a party or any writings as may be necessary to be executed in order to give formal effect to the provisions of the Scheme. The Transferee Company shall be deemed

to be authorised to execute any such writings on behalf of the Transferor Company and to carry out or perform all such formalities or compliances required for the purposes specified above by the Transferor Company.

24.3 All licences, incentives, remissions, tax incentives, subsidies, privileges, consents, sanctions, and other authorisations, to which the Transferor Company are entitled, shall stand vested in the Transferee Company and permitted or continued by the order of sanction of the Tribunal. The Transferee Company shall file the Scheme with applicable Governmental Authorities for their record, who shall take it on record pursuant to the sanction order of the Tribunal.

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Schedule-B

Dytint

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

AHMEDABAD BENCH

CP (CAA) NO. 57 OF 2022

In the CA (CAA) No. 33 of 2022

In the matter of the Companies Act, 2013;

AND

In the matter of Sections 230 to 232 read with 61 and 66 of the Companies Act, 2013;

AND

In the matter of Scheme of Arrangement in the nature of Amalgamation of Dytint Specialities Private Limited (DSPL) with Alps Chemicals Private Limited (ACPL) and their respective shareholders and creditors.

List of Assets of the Transferor Company i.e. Dytint Specialities Private Limited as on 19th December, 2022 to be transferred to Transferee Company i.e. Alps Chemicals Private Limited, pursuant to the scheme Sanctioned by the Hon'ble National Company Law Tribunal, Bench at Ahmedabad.

DYTINT SPECIALITIES PVT. LTD. VATVA AHMEDABAD

Schedule

Part I

Particulars of Freehold Properties:

(i) Land:

Sr. No.	Complete Address	Area in Sq. Metres	Brief description of location etc
1.	Nil	Nil	Nil

(ii) Building:

Sr. No.	Complete Address	Area in Sq. Metres	Brief description of location etc
1	Nil	Nil	Nil

(iii)Capital Work in Progress (Building):

Sr. No.	Complete Address	Area in Sq. Metres	Brief description of location etc
1	Dytint Specialities Private Limited PHASE-I VATVA GIDC, AHMEDABAD-382445	706.53	Plot No.C1-131 PHASE-I VATVA GIDC, AHMEDABAD-382445

(iv)**Plant and Machinery:** (if any, imbedded or attached to earth-**NIL**) Brief description of Machinery and Complete Address of its location. (No Value required.) (If the list is long, please provide the information as Annexure)

Sr No.	Complete Address	Brief description of machinery
1	Computer	14
2	Plant & Machinery	92
3	Office Equipment	6
4	Furniture and Fixtures	5
5	Software	1
6	Laboratory equipment	15
7	Electrical Installations	11

If there is no such free hold property, mention Nil.

Part II

Particulars of Leasehold Properties:

(i) **Land:**

Sr. No.	Complete Address	Area in Sq. Meters	Brief description of location etc.
1.	**Plot No.C1-126**	765	PHASE-1 VATVA GIDC, AHMEDABAD-382445
2.	**Plot No.C1-131**	706.53	PHASE-1 VATVA GIDC, AHMEDABAD-382445
3.	**Plot No.130-1**	642	PHASE-1 VATVA GIDC, AHMEDABAD-382445
4.	**Plot No.130-2**	531	PHASE-1 VATVA GIDC, AHMEDABAD-382445

(ii) **Building: -In the State of Gujarat**

Sr. No.	Complete Address	Area in Sq. mtr	Brief description of location etc.
1	Dytint Specialities Private Limited PHASE-1 VATVA GIDC, AHMEDABAD-382445	2796.32	Plot No.C1-126, 130-1 & 2 PHASE-1 VATVA GIDC, AHMEDABAD-382445

(iii)**Capital Work in Progress (Building):**

Sr. No.	Complete Address	Area in Sq. Metres	Brief description of location etc
1	Dytint Specialities Private Limited PHASE-1 VATVA GIDC, AHMEDABAD-382445	760	Plot No.C1-131 PHASE-1 VATVA GIDC, AHMEDABAD-382445

(iv)**Plant and Machinery:** <<(if any, imbedded or attached to earth) Brief description of Machinery and Complete Address of its location. (No Value required.) (If the list is long, please provide the information as Annexure)>>

Sr. No.	Complete Address	Brief description of machinery etc
	NIL	

If there is no such leasehold property, mention Nil.

Part III

A. ***Particulars of Investment in Shares & Securities:***(If the list is long, please provide the information as Annexure)

Sr. No.	Name of Entity/Fund	No of Shares/Unit	Type of Security	Face Value
1	Nil	Nil	Nil	Nil

Nil (if not applicable)

B. ***Particulars of Bank Accounts:***(If applicable)

Sr. No.	Bank & Branch	Type of Account	Account No.
1	Citi Bank N.A.	Current A/c	0036710667
2	Bank of Baroda	Current A/c	15960200005622

C. ***Registration with Various Authorities under respective laws, Bodies etc. including licenses and benefits arising out of the notifications:***

Sr. No.	Name of Authority	Nature of registration	Permit/license No. /Registration No.
1	GOVERNMENT OF INDIA MINISTRY OF COMMERCE	CERTIFICATE OF IMPORTER-EXPORTER (IEC)	0801007241
2	GOVERNMENT OF INDIA (GST DEPARTMENT)	GST REGISTRATION CERTIFICATE	24AAACE4640H1Z0
3	MINISTRY OF MICRO, SMALL AND MEDIUM ENTERPRISE	UDYAM REGISTRATION CERTIFICATE	UDYAM-GJ-01-0052356
4	INCOME TAX DEPARTMENT	PAN	AAACE4640H

D. *Vehicles*: (If applicable)

Description	Registration No.
Nil	Nil

For Dytint Specialities Pvt. Ltd.

Signature of the Director of the Company